The 1962 Possession Order

Version 1.0.0 · 2026-10-23

Editors of the Great House Farm Legal Wiki

Table of Contents

1 Release notes 1
1.1 This release (version 1.0.0) . . . 1
1.2 Older versions . . . 1

2 Record 1
2.1 Evidence, in date order . . . 2
2.2 Page version & change log . . . 3

Page 23 of the Great House Farm Legal Wiki, carried over from the version last modified on 2026-10-21. The same page is published at research.bucklerfamily.estate, and this version is also a PDF in the wayback archive.

1 Release notes

1.1 This release (version 1.0.0)

- **2026-Oct-23** - Carried over to the docs library from Legal Wiki page 23 (last modified 2026-10-21 19:06:25 UTC). The page text, dates and references are as on the wiki. Links to wiki pages lead to the same page on research.bucklerfamily.estate; images are links to their files on the wiki.

1.2 Older versions

None yet.

2 Record

Page ID: 23 · **Title:** The 1962 Possession Order · **Evidence status:** Not yet labelled — see the Editing Protocol · **Version:** 1.0.0 · Editing Protocol

On 11 December 1962 Judge Temple Morris QC… … read more

On 11 December 1962 Judge Temple Morris QC, in Cardiff County Court, made an order for possession of the farmhouse and garden of Great House Farm, with mesne profits since 1955, against Frederick and Mary (Nancy) Buckler née Williams, on the claim of Western Ground Rents (WGR) [PENDING: EV-0041]. The possession order was never enforced before 1974.

Parcel-scope correction — 9 October 2026.… … read more

Parcel-scope correction — 9 October 2026. This 1962 proceeding concerned the farmhouse and garden Mary and the family were still physically occupying. That occupied centre was part of the full Parcel A, but it was not the whole of Parcel A. The family's established case is that Parcel A also included the northern forest and the ground south-east of the house/garden later registered as VG41, both seized on 4 July 1955 while WGR enforced possession of Parcel B. The 1962 order must not be used to recast the family's full Parcel-A title claim as limited to the house and garden.

What came before: 1939 fields tenancy · 1955… … read more

What came before: 1939 fields tenancy · 1955 order · 1955 enforcement, except the house | **What happened next:** 1967 Frederick's death · 1974 action · 1974 warrant withdrawn · 1974 licence letters · 1987 Court of Appeal

2.1 Evidence, in date order

1959: The refusal that preceded it

Letter **WGR's 1959 tenancy offer and Mary's reply**

Placeholder: to be obtained

Catalogue: GHF-E023-01

Location: Not yet established from the present record

Correspondence **WGR tenancy offer to Mary (Nancy) Williams and her reply, 1959**

Awaited: primary event document not yet uploaded

Catalogue: GHF-E023-02

Location: WGR / family papers / court archive — primary correspondence to be obtained

Evidence description: Mary refused a tenancy of the farmhouse and garden and asserted ownership through her grandfather [PENDING: EV-0039]. The judgment adds: "No such documents were, however, ever produced" (Court of Appeal, 1987) [EV-0080].

Occupied house groupThe farmhouse and garden within the full Parcel A (full Parcel-A definition), offered on their own.

11 December 1962: The order

Court order **Cardiff County Court, possession and mesne profits order, 11 December 1962**

Placeholder: to be obtained (plaint file sought at Glamorgan Archives)

Catalogue: GHF-E023-03

Location: Glamorgan Archives

Court record **Court file, plan and papers underlying the 11 December 1962 possession and mesne profits order**

Awaited: primary event document not yet uploaded

Catalogue: GHF-E023-04

Location: Cardiff County Court / archive — primary record to be obtained

Also catalogued: GHF-E022-06 (formerly on the 1955 page; location not yet established).

Evidence description: an order for possession of the farmhouse and garden and for mesne profits, made against Frederick and Mary.

Occupied house groupThe farmhouse and garden within the full Parcel A (full Parcel-A definition), framed against the earlier "whole farm" tenancy narrative, which is not treated here as proof of WGR's historic title (title test).

Research note. It was the first proceeding to name Mary; the 1955 order was against Frederick alone.

1963: Partial enforcement of mesne profits

Court order **Committal order against Frederick Buckler, June 1963**

Placeholder: to be obtained

Catalogue: GHF-E023-05

Location: Family archive / privately held material

Enforcement record **Committal / enforcement order concerning Frederick Buckler, June 1963**

Awaited: primary event document not yet uploaded

Catalogue: GHF-E023-06

Location: Cardiff County Court / archive — primary record to be obtained

Evidence description: the money part of the order was enforced to some extent. Possession was not.

Parcel AProfits for occupying the farmhouse and garden since 1955.

Research note. The enforcement apparently included a suspended committal order against Frederick in June 1963; this is not yet confirmed by a document.

2 March 1965: Weekly tenancy offered, not accepted

Letter **WGR's agents to "Mrs Williams", 2 March 1965**

Placeholder: to be obtained (recited in the 1987 judgment)

Catalogue: GHF-E017-09 / GHF-E009-18

Location: Not yet established from the present record

Evidence: Court of Appeal judgment, 1987

Evidence description: on 2 March 1965 WGR's agents offered "Mrs Williams" a weekly tenancy of the farmhouse and garden at £2 [PENDING: EV-0039]. It was not signed or returned and no rent was paid. The estate treated her occupation as adverse from then.

Parcel AA second offer of a tenancy of the farmhouse and garden alone (Parcel A). Mary did not sign it, so it did not make her occupation permissive.

Questions the family raises about the order

Research note.

- It depended on the farm still being one unit as in 1916; the 1924/1928 Parcel A freehold split, the 1938 conveyance and the 1939 tenancy were not, so far as the record shows, put before the court.
- WGR had to prove its own paper title to Parcel A against Mary as an owner-claimant, not rely on Frederick's ended fields tenancy.
- County court jurisdiction in December 1962 was limited to property of £100 net annual rateable value; the limit rose to £400 only in 1963. If the farmhouse exceeded £100, the order may have been made without jurisdiction. The 1956 and 1963 valuation lists would test this.
- Service, the land description and the long non-enforcement are also under examination.
- On the family's case the limitation clock for Parcel A started in 1928, when rent to the Thomases stopped, not in 1955 as the 1987 Court of Appeal counted it [PENDING: EV-0016].

The Glamorgan Archives plaint file for the 1962 action is the key document still to be retrieved. The relationship between the 1962 order and the later 1987 litigation is recorded as a separate research question. See Constructive Criticism & Counterarguments for counterarguments concerning finality and procedural effect.

What happened next: on 19 September 1974… … read more

What happened next: on 19 September 1974 leave was given to enforce the order, and on 31 October 1974 the warrant was withdrawn, the day BP sent its licence letters (1974 warrant; leave-to-enforce papers also catalogued here as GHF-E023-07). The Court of Appeal in 1987 held that because the 1962 action began within 12 years of 1955, the landlord's title had not been extinguished (judgment catalogued here as GHF-E023-08).

Method and evidence key: Main Page · title test · Master timeline

2.2 Page version & change log

Current version: 1.0.0

Version	Date (UTC)	Editor (human or agent name)	Change	Source / evidence
1.0.0	2026-10-18T15:15Z	Sion's Tab agent	Footer standardised; no content change	Editing Protocol, 18 Oct 2026

Agents and editors: follow the Editing Protocol.